

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB833 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Mark Tedford

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

SENATE BILL NO. 833

By: Daniels of the Senate

and

Tedford of the House

FLOOR SUBSTITUTE

An Act relating to crimes and punishments; amending
21 O.S. 2021, Section 1722, as amended by Section
255, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,
Section 1722), which relates to the taking of crude
oil or gasoline; making certain acts unlawful;
providing penalty; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1722, as
amended by Section 255, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
2025, Section 1722), is amended to read as follows:

Section 1722. A. Any person who shall unlawfully take any
crude oil or gasoline, or any product thereof, from any pipe,
pipeline, tank, tank car, or other receptacle or container and any
person who shall unlawfully take or cause to be taken any machinery,
drilling mud, pipes, fittings, pumps, and all other equipment or
~~other~~ materials necessary for the drilling or production of oil or

1 gas wells, with intent to deprive the owner or lessee thereof of
2 said crude oil, gas, gasoline, or any product thereof, machinery,
3 drilling mud, pipes, fittings, pumps, and all other equipment or
4 ~~other~~ materials necessary for the drilling or production of oil or
5 gas wells shall:

6 1. Be guilty of a misdemeanor if the value of said product so
7 taken is less than One Thousand Dollars (\$1,000.00) ~~7~~ and, upon
8 conviction thereof, shall be punished by a fine of not more than
9 Five Hundred Dollars (\$500.00), or by imprisonment in the county
10 jail for a term not to exceed sixty (60) days, or by both such fine
11 and imprisonment; and

12 2. Be guilty of a Class C2 felony offense if the value of such
13 product so taken is One Thousand Dollars (\$1,000.00) or more and, upon
14 conviction thereof, shall be punished by forfeiture of the
15 instrumentality of the crime and by a fine of not less than One
16 Hundred Dollars (\$100.00), and not more than Fifty Thousand Dollars
17 (\$50,000.00), or by imprisonment in the ~~State Penitentiary~~ custody
18 of the Department of Corrections for a term in the range of one (1)
19 year to ten (10) years, or by both such fine and imprisonment.

20 B. Any person violating the provisions of this section who:

21 1. Takes such product and causes environmental damage to the
22 real property as a direct result of the taking of such product; and

23 2. The direct costs of remediation or restoration of the
24 environmentally damaged real property exceeds the amount of Two

1 Thousand Five Hundred Dollars (\$2,500.00), shall, upon conviction,
2 be guilty of a felony.

3 SECTION 2. This act shall become effective November 1, 2026.
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